



VIA ELECTRONIC SUBMISSION: Regulations.gov

February 23, 2026

Assistant Secretary for Technology Policy and the Office of the National Coordinator for Health Information Technology, Department of Health and Human Services
Attention: Request for Information: HHS Health Sector AI RFI
Mary E. Switzer Building
Mail Stop: 7033A, 330 C Street SW
Washington, DC 20201

RE: SCAN Health Plan Comments on Request for Information: Accelerating the Adoption and Use of Artificial Intelligence as Part of Clinical Care

At SCAN Health Plan, our mission is to keep seniors healthy and independent. Every initiative we undertake, from care coordination to technology modernization, is guided by that purpose. We view artificial intelligence (AI) as a tool that can help us advance this mission, but only when applied in a careful, intentional, and senior-centric way.

The promise of AI lies in freeing our clinicians, care managers, and member service representatives to spend more meaningful time solving member problems, innovating care models, and delivering human-centered service.

Responsible and Senior-Centric AI Use

SCAN's approach to AI development and deployment begins with the end user: the member. Too often throughout the healthcare industry, AI adoption discussions take place among technical, legal, or compliance experts who make decisions based on assumptions about what the user might need. We believe responsible AI starts by listening to seniors, caregivers, and providers to understand their comfort with automation, their expectations, and how AI tools can enhance human connection. Our goal is not to make assumptions; it's to know, for sure, what our members want.

We recommend a simple overarching philosophy for AI in Medicare: AI tools designed for seniors should be *informed by seniors*. This philosophy guides our human centered design practices, usability testing, and governance framework.

HHS can play a role ensuring that AI in clinical care is designed *with* input from the end user, not merely for them. As the Department emphasized in previous accountable care organization models, we urge HHS to embed patient and caregiver voices into AI funding, pilots, and certification. HHS can encourage or require that AI implementers demonstrate how they gathered evidence about end user needs and comfort with automation (*e.g.*, surveys, interviews, accessibility testing) rather than relying on assumptions. HHS can also issue guidance encouraging AI tools used in Medicare and Medicaid to provide plain language explanations of



what the tool does, how it supports the care team, and how the members can ask questions or opt out where appropriate. Materials should be accessible for different literacy levels, languages, and disabilities, so seniors can make informed choices about interacting with AI enabled services.

AI Literacy and Trust

For AI to truly improve health outcomes, AI literacy must be embedded across all stakeholders—staff, clinicians, caregivers, and members. Individuals interacting with AI should understand not just how to use it, but how to question it: How is my data used? Is this output accurate? What are my rights and choices?

At SCAN, we are implementing initiatives to train our teams in the principles of responsible AI, bias mitigation, and data ethics. We also believe HHS can play a pivotal role in promoting AI literacy by supporting public education efforts, encouraging transparency standards, and incentivizing patient-centered AI applications. HHS already helps Americans understand healthcare through the Medicare Learning Network and other educational resources. A Health AI Learning Network, or something similar, could help increase AI literacy on a broad-based level.

Governance and Oversight

AI at SCAN is governed, managed, and monitored through a multidisciplinary structure involving compliance, clinical leadership, data analytics, and privacy experts. We maintain continuous oversight of AI-enabled systems to assess their accuracy, fairness, and member impact. Responsible AI use must be transparent, explainable, and accountable, especially when serving vulnerable populations like seniors.

One of the key barriers to AI adoption in the clinical context is regulatory uncertainty and fragmentation. Today, there is no concrete way to map AI tools to existing frameworks and rules. This makes it difficult to predict how evolving frameworks will impact autonomous tools. Stakeholders are unsure how to use AI in a HIPAA regulated setting without inappropriate data use, increased breach risk, secondary uses of data, etc., which can stall innovation and experimentation. Clear, substantive, HHS guidance on HIPAA and AI would be helpful for organizations across healthcare – best practice examples would be ideal.

Infrastructure and Interoperability

Many healthcare organizations are introducing AI into technology environments, still characterized by fragmented data systems, legacy platforms, and inconsistent data standards. Without a strong digital foundation, AI risks accelerating inefficiencies rather than improving them.

HHS can play a leadership role by encouraging interoperability, data standardization, and investment in modern digital infrastructure. The ability to securely exchange structured, high-quality data across the ecosystem is essential for equitable and effective AI adoption. Further,



healthcare interoperability can be further bolstered through the usage of AI-based standards like Model Context Protocol (MCP) and Agent-to-Agent.

Successes To-Date

Our organization has seen the promise of AI through early use cases ranging from “back office” administration to tools that support our frontline Member Service Advocates (MSA). We believe that the following investments have improved the experiences of our seniors:

- Intelligent telephony and contact center redesign:
 - Using intent detection, we route members to the most appropriate MSA or benefit partner for their needs, reducing transfers and hold time.
 - Using a voice agent, we can schedule callbacks and provide general FAQ with members who call after-hours. This reduces time-to-callback and provides 24/7 support. This could expand to more self-service capabilities in the future, enabling a caller to address needs on their own if desired.
- Reduction of administrative overhead on paper-based documents:
 - Using combinations of optical character recognition (OCR), automation, and generative AI, we have dramatically reduced paperwork handling by our employees. This reduces turnaround time and can trigger earlier interventions for our members.
 - We are pairing this work with overall digital transformation, expanding our digital-native solutions instead of simply automating paper-based processes. This effort reduces friction for providers, brokers, and other stakeholders with whom we do business.

Future Directions and Opportunities

AI opens a wide variety of doors that could lead to improved care for seniors, including:

- Personalized care recommendations based on insights and real-time data from electronic health records and wearable devices;
- Proactive outreach that identifies early signs of risk and connects seniors to preventative care;
- Streamlined administrative functions that return staff time to member-facing activities;
- Caregiver support tools that enhance coordination, communication, and self-management; and
- Individualized communication that is contextually appropriate and respects the wishes, values, and needs of a member.

HHS policies that enable innovation while ensuring safety, transparency, and inclusion will be key to realizing these benefits across populations.



Conclusion

SCAN strongly supports HHS's exploration of approaches to accelerate responsible AI adoption in healthcare. We encourage frameworks that prioritize end user trust, equitable access, literacy, and interoperability as the foundations of successful and sustainable innovation.

Responsible, senior centered AI is not just about technology. It is about empowering independence, improving understanding, and creating health experiences that are personalized, dignified, and human. SCAN looks forward to collaborating with HHS as the Department seeks to advance AI in healthcare. Please do not hesitate to be in touch with us to discuss how AI can improve healthcare quality, affordability, and accessibility.

Sincerely,

Tricia Guay

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